

handling the litigation would be promoted thereby. (Code Civ. Proc. § 598.) Additionally, the trial court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, or of any separate issue of any number of causes of action, preserving the right of trial by jury as required by the Constitution or a statute of this state or of the United States. (Code Civ. Proc. § 1048(b).)

The discretion of the trial court to bifurcate claims and try them separately is broad and will not be disturbed on appeal, except for abuse. (*National Electric Supply Co. v. Mt. Diablo Unified School Dist.* (1960) 187 Cal.App.2d 418; see *Buran Equip. Co. v. H & C Investment Co.* (1983) 142 Cal.App.3d 338, 343-344.)

Analysis

Having reviewed the briefing, the Court is not persuaded that judicial economy would be served by bifurcating liability from damages.

Defendant argues that “[w]ith very limited exception, the damages phase will consist of witnesses who are wholly distinct from those offered on the issue of liability” and that “[o]nly three witnesses can reasonably be expected to offer testimony pertaining to both liability and damages”—specifically Kaylee Mello (the driver), Sarah Salagi (a witness who performed CPR on the decedent), and Logan Cartwright (the officer who responded to the incident. (Motion at 4:20-26.) Defendant also argues that “[d]amages evidence will undoubtedly be prejudicial” because it is probably that “passion and sympathy will impact the jury’s evaluation of liability[.]” (Id. at 5:15-16.)

In opposition, Plaintiffs argue that duplication of evidence is certain if bifurcation were ordered. Specifically, that both Kaylee Mello and Sarah Silagi would have to testify twice in a bifurcated trial. (Schaefer Opp. at § III(A); Welsch-Schaefer and Mello Opp at § III(B)(1).) Plaintiffs also argue that the facts relating to liability and damages are interconnected—for example, plaintiffs’ allegation that the BNSF train was traveling at an excessive speed is relevant to both liability (negligent operation) and damages (severity of injuries and death). (Id. at § III(B)(2).)

On reply, Defendant disputes that the evidence is so interconnected as to preclude bifurcation and that the “[t]he prejudice BNSF seeks to remedy through bifurcation is a cumulative issue.” (Reply to Wells-Schaefer and Mello Opp. at 4:7-8.) The Court notes that to some degree this argument presumes that the prejudice would be ameliorated should BNSF prevail on liability.

Ultimately, the Court finds that Defendants have failed to demonstrate sufficient cause to bifurcate this action. The purpose of bifurcation is to promote efficiency. Here, Defendant has not shown that doing so would convenience the parties or witnesses, avoid prejudice, or promote judicial economy or efficiency.

3. 9:00 AM CASE NUMBER: C22-02694
CASE NAME: JANE DOE VS. GERALD BEARDEN
HEARING ON SUMMARY MOTION BY USA EQUESTRIAN TRUST, INC.
FILED BY:
TENTATIVE RULING:

This hearing was vacated by the Court’s Order entered January 20, 2026.

4. 9:00 AM CASE NUMBER: C23-02697
CASE NAME: IDO ADLER VS. ANDERSON RANCH SINGLE FAMILY OWNERS ASSOCIATION
*HEARING ON MOTION IN RE: LEAVE TO FILE A 2ND AMENDED COMPLAINT
FILED BY: ADLER, IDO
TENTATIVE RULING:

Before the Court is a motion by plaintiffs for leave to file a Second Amended Complaint. The motion is **granted**, as discussed below. Plaintiffs may file and serve the proposed Second Amended Complaint, attached as Exhibit B to the Declaration of Zachary D. Schorr, on or before February 13, 2026.

Background

Parties are familiar with the factual background of this case, which is set forth in the Court's 11/13/25 order denying plaintiffs' MSJ, and need not be repeated here. In sum, this matter involves questions regarding an easement over defendant's property to access plaintiffs' property, including whether one exists and if so, the scope and location.

Plaintiffs filed suit against defendant, Anderson Ranch Single Family Owners Association ("Anderson Ranch") in 2023 and later filed their First Amended Complaint on June 10, 2024. The FAC alleged causes of action for quiet title and declaratory relief and injunctive relief. Anderson Ranch answered on August 13, 2024, asserting sixteen "affirmative defenses."

The Court denied a motion by Anderson Ranch sought to expunge the lis pendens in early 2025 and later that same year, denied a motion for summary adjudication filed by plaintiffs. The order denying summary adjudication specifically noted that a description of the easement would be required to enter judgment on plaintiffs' cause of action for quiet title.

On December 12, 2025, plaintiffs filed this motion for leave to file a Second Amended Complaint ("SAC"). Their proposed SAC is attached to counsel's declaration in support of the motion. (See Declaration of Zachary D. Schorr, hereinafter "Schorr Decl.," Ex. B.) A redline showing proposed changes to the First Amended Complaint is also attached to counsel's declaration. (Schorr Decl., Ex. A.)

Anderson Ranch opposes the motion, arguing it is untimely and that the proposed new causes of action are based on protected activity (litigation conduct) and subject to a motion to strike pursuant to California's Anti-SLAPP statute. Anderson Ranch further argues that the plaintiffs' settlement communications demonstrate improper litigation tactics.

Evidentiary Matters

Plaintiffs' objections to defendant's counsel's declaration are **overruled**.

Discussion

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. The general rule is that the Court should exercise this discretion liberally in favor of amendments, to permit the resolution of all disputed matters between two parties in a single proceeding, up to and including trial. (See, e.g., *Lincoln Prop. Co., N.C., Inc. v. Travelers Indem. Co.*